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But contrary to the Government’s argument, nothing in these past decisions undermines our interpretation of § 633a(a).

1. In *Safeco Ins. Co. of America v. Burr*, 551 U. S., at 63, we interpreted a provision of the Fair Credit Reporting Act (FCRA) requiring that notice be provided “[i]f any person takes any *adverse action* with respect to any consumer that is *based* in whole or in part *on any information contained in a consumer [credit] report*.” 15 U. S. C. § 1681m(a) (emphasis added). This language is quite different from that of 29 U. S. C. § 633a(a).

In § 1681m(a), the phrase “based . . . on any information contained in a consumer [credit] report” modifies “adverse action,” and thus the information in question must be a but-for cause of the adverse action. By contrast, in § 633a(a), “based on” does not modify “personnel actions”; it modifies “discrimination,” *i. e.*, differential treatment based on age.

The Government tries to find support in *Safeco*’s discussion of FCRA’s reference to an adverse action that is “based . . . *in part*” on a credit report. 15 U. S. C. § 1681m(a) (emphasis added). The *Safeco* Court observed that the phrase “in part” could be read to mean that notice had to be given “whenever the report was considered in the rate-setting process,” but it rejected this reading. 551 U. S., at 63. The Government suggests that the Court reached this conclusion because it thought that Congress would have “said so expressly” if it had meant to require notice in situations where consideration of a credit report was inconsequential. Brief for Respondent 19. Accordingly, the Government argues, because § 633a(a) does not say expressly that consideration of age is unlawful, we should conclude that mere consideration is insufficient to trigger liability. See *id.*, at 19–20.

This argument fails for two reasons. First, as explained above, the language of § 633a(a) *does* expressly impose liability if age discrimination plays a part in a federal employment decision. Second, *Safeco* did not invoke the sort of super-plain-statement rule that the Government now attributes to

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it. Instead, the *Safeco* Court rejected the argument on other grounds, including its assessment of the particular statutory scheme at issue. See 551 U.S., at 63–64. That reasoning obviously has no application here.

2. In *Gross v. FBL Financial Services, Inc.*, 557 U.S. 167, we interpreted the private-sector provision of the ADEA, 29 U.S.C. § 623(a)(1), and held that it requires a plaintiff to prove that “age was the ‘but-for’ cause of the employer’s adverse action.” 557 U.S., at 177. But as we previously recognized, the ADEA’s private- and public-sector provisions are “couched in very different terms.” *Gómez-Pérez v. Potter*, 553 U.S. 474, 488 (2008).

Section 623(a)(1) makes it “unlawful for an employer . . . to fail or refuse to hire or to discharge any individual or otherwise discriminate against any individual with respect to his compensation, terms, conditions, or privileges of employment, because of such individual’s age.” Thus, the but-for causal language in § 623(a)(1)—“because of such individual’s age”—is an adverbial phrase modifying the verbs (“to fail or refuse to hire,” etc.) that specify the conduct that the provision regulates. For this reason, the syntax of § 623(a)(1) is critically different from that of § 633a(a), where, as noted, the but-for language modifies the noun “discrimination.” This is important because all the verbs in § 623(a)(1)—failing or refusing to hire, discharging, or otherwise discriminating with respect to “compensation, terms, conditions, or privileges of employment”—refer to end results.⁴ By contrast, the provision in our case, § 633a(a), prohibits any age discrimination in the “mak[ing]” of a personnel decision, not just with respect to end results.

⁴ Moreover, even if “discriminating with respect to compensation, terms, conditions, or privileges of employment” could be read more broadly to encompass things that occur before a final decision is made, the *ejusdem generis* canon would counsel a court to read that final phrase to refer—like the prior terms—to the final decision. See *Christopher v. SmithKline Beecham Corp.*, 567 U.S. 142, 163, and n. 19 (2012).

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3. Finally, in *University of Tex. Southwestern Medical Center v. Nassar*, 570 U. S. 338, we interpreted Title VII’s anti-retaliation provision, 42 U. S. C. § 2000e–3(a), as requiring retaliation to be a but-for cause of the end result of the employment decision. The Court saw no “meaningful textual difference between the text [of that provision] and the one in *Gross*,” 570 U. S., at 352, and the Court found support for its interpretation in the rule that recovery for an intentional tort generally requires proof “‘that the harm would not have occurred’ in the absence of—that is, but for—the defendant’s conduct,” *id.*, at 346–347 (quoting Restatement of Torts § 431, Comment *a*, pp. 1159–1160 (1934)).

That reasoning has no application in the present case. The wording of § 633a(a)—which refers expressly to the “mak[ing]” of personnel actions in a way that is “free from any discrimination based on age”—is markedly different from the language of the statutes at issue in *Gross* and *Nassar*, and the traditional rule favoring but-for causation does not dictate a contrary result. Section 633a(a) requires proof of but-for causation, but the object of that causation is “discrimination,” *i. e.*, differential treatment, not the personnel action itself.

For these reasons, *Safeco*, *Gross*, and *Nassar* are entirely consistent with our holding in this case.

C

We are not persuaded by the argument that it is anomalous to hold the Federal Government to a stricter standard than private employers or state and local governments. That is what the statutory language dictates, and if Congress had wanted to impose the same standard on all employers, it could have easily done so.

As first enacted, the ADEA “applied only to actions against private employers.” *Lehman v. Nakshian*, 453 U. S. 156, 166 (1981). In 1974, “Congress expanded the scope of [the] ADEA” to reach both state and local governments and

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the Federal Government. *Ibid.* To cover state and local governments, Congress simply added them to the definition of an “employer” in the ADEA’s private-sector provision, see 29 U. S. C. § 630(b), and Congress could have easily done the same for the Federal Government. Indeed, the first proposal for expansion of the ADEA to government entities did precisely that. *Lehman*, 453 U. S., at 166, n. 14.

But Congress did not choose this route. Instead, it “deliberately prescribed a distinct statutory scheme applicable only to the federal sector,” *id.*, at 166, and in doing so, it eschewed the language used in the private-sector provision, § 623(a). See *Gómez-Pérez*, 553 U. S., at 488. We generally ascribe significance to such a decision. See *Russello v. United States*, 464 U. S. 16, 23 (1983) (“‘[W]here Congress includes particular language in one section of a statute but omits it in another section of the same Act, it is generally presumed that Congress acts intentionally and purposely in the disparate inclusion or exclusion’”).

That Congress would want to hold the Federal Government to a higher standard than state and private employers is not unusual. See Supp. Letter Brief for Respondent 1 (“The federal government has long adhered to anti-discrimination policies that are more expansive than those required by . . . the ADEA”); *e. g.*, Exec. Order No. 11478, § 1, 3 CFR 446 (1969) (“It is the policy of the Government of the United States to provide equal opportunity in Federal employment for all persons, to prohibit discrimination in employment . . . and to promote the full realization of equal employment opportunity through a continuing affirmative program”); Exec. Order No. 12106, § 1–102, 3 CFR 263 (1978) (amending Exec. Order No. 11478 to cover discrimination on the basis of age). And several years after adding § 633a(a) to the ADEA, Congress amended the civil service laws to prescribe similar standards. See 5 U. S. C. § 2301(b)(2) (“Federal personnel management should be implemented consistent with the . . . merit system principl[e] that a]ll employees and applicants for employment should receive fair and equitable treatment in

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all aspects of personnel management without regard to . . . age”).

In any event, “where, as here, the words of [a] statute are unambiguous, the “judicial inquiry is complete.”” *Desert Palace, Inc. v. Costa*, 539 U. S. 90, 98 (2003) (quoting *Connecticut Nat. Bank v. Germain*, 503 U. S. 249, 254 (1992)).

D

While Babb can establish that the VA violated §633a(a) without proving that age was a but-for cause of the VA’s personnel actions, she acknowledges—and we agree—that but-for causation is important in determining the appropriate remedy. It is bedrock law that “requested relief” must “redress the alleged injury.” *Steel Co. v. Citizens for Better Environment*, 523 U. S. 83, 103 (1998). Thus, §633a(a) plaintiffs who demonstrate only that they were subjected to unequal consideration cannot obtain reinstatement, backpay, compensatory damages, or other forms of relief related to the end result of an employment decision. To obtain such remedies, these plaintiffs must show that age discrimination was a but-for cause of the employment outcome.

We have long employed these basic principles. In *Texas v. Lesage*, 528 U. S. 18, 21–22 (1999) (*per curiam*), we applied this rule to a plaintiff who sought recovery under Rev. Stat. § 1979, 42 U. S. C. § 1983, for an alleged violation of the Equal Protection Clause. We explained: “[W]here a plaintiff challenges a discrete governmental decision as being based on an impermissible criterion and it is undisputed that the government would have made the same decision regardless, there is no cognizable injury warranting [damages] relief.” 528 U. S., at 21. Cf. *Mt. Healthy City Bd. of Ed. v. Doyle*, 429 U. S. 274, 285 (1977) (rejecting rule that “would require reinstatement . . . even if the same decision would have been reached had the incident not occurred”).

Our conclusion is also supported by traditional principles of tort and remedies law. “Remedies generally seek to place the victim of a legal wrong . . . in the position that person

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would have occupied if the wrong had not occurred.” R. Weaver, E. Shoben, & M. Kelly, *Principles of Remedies Law* 5 (3d ed. 2017). Thus, “[a]n actor’s liability is limited to those harms that result from the risks that made the actor’s conduct tortious.” Restatement (Third) of Torts § 29, p. 493 (2005). Remedies should not put a plaintiff in a more favorable position than he or she would have enjoyed absent discrimination. But this is precisely what would happen if individuals who cannot show that discrimination was a but-for cause of the end result of a personnel action could receive relief that alters or compensates for the end result.

Although unable to obtain such relief, plaintiffs are not without a remedy if they show that age was a but-for cause of differential treatment in an employment decision but not a but-for cause of the decision itself. In that situation, plaintiffs can seek injunctive or other forward-looking relief. Determining what relief, if any, is appropriate in the present case is a matter for the District Court to decide in the first instance if Babb succeeds in showing that § 633a(a) was violated.

* * *

The judgment of the United States Court of Appeals for the Eleventh Circuit is reversed, and the case is remanded for further proceedings consistent with this opinion.

It is so ordered.

JUSTICE SOTOMAYOR, with whom JUSTICE GINSBURG joins, concurring.

I join the majority opinion because I agree that 29 U. S. C. § 633a imposes liability even when age is not a “‘but-for cause’” of a personnel action. *Ante*, at 402. I write separately to make two observations.

First, the Court does not foreclose § 633a claims arising from discriminatory processes. Cf. *Comcast Corp. v. National Assn. of African American-Owned Media*, 589 U. S. 327, 342–344 (2020) (GINSBURG, J., concurring in part and concurring in judgment). If, for example, an employer

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hires a 50-year-old person who passed a computer-aptitude test administered only to applicants above 40, clearly a question could arise as to whether the hiring decision was “made free from” differential treatment.

Second, this same example may suggest that §633a permits damages remedies, even when the Government engages in nondispositive “age discrimination in the ‘mak[ing]’ of a personnel decision.” *Ante*, at 410. If an applicant incurs costs to prepare for the discriminatorily administered aptitude test, a damages award compensating for such out-of-pocket expenses could restore the applicant to the “position tha[t] he or she would have enjoyed absent discrimination.” *Ante*, at 414.

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Until now, the rule for pleading a claim under a federal antidiscrimination statute was clear: A plaintiff had to plausibly allege that discrimination was the but-for cause of an adverse action, unless the statute’s text unequivocally replaced that standard with a different one. Today, however, the Court departs from this rule, concluding that the federal-sector provision of the Age Discrimination in Employment Act of 1967 (ADEA) imposes liability if an agency’s personnel actions are at all tainted by considerations of age. See *ante*, at 402. This rule is so broad that a plaintiff could bring a cause of action even if he is ultimately promoted or hired over a younger applicant. This novel “any consideration” standard does serious damage to our interpretation of anti-discrimination statutes and disrupts the settled expectations of federal employers and employees. I therefore respectfully dissent.

I

A

In my view, the default rule of but-for causation applies here because it is not clearly displaced by the text of the ADEA’s federal-sector provision. Though the Court engages at length with the provision’s text, it barely acknowl-

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edges our default rule, which undergirds our antidiscrimination jurisprudence. Because the interpretation of an antidiscrimination statute must be assessed against the backdrop of this default rule, I begin by describing the rule in detail.

We have explained that “[c]ausation in fact—*i. e.*, proof that the defendant’s conduct did in fact cause the plaintiff’s injury—is a standard requirement of any tort claim,” including claims of discrimination. *University of Tex. Southwestern Medical Center v. Nassar*, 570 U. S. 338, 346 (2013) (quoting various provisions of the Restatement of Torts (1934)). “In the usual course, this standard requires the plaintiff to show that the harm would not have occurred in the absence of—that is, but for—the defendant’s conduct.” 570 U. S., at 346–347 (internal quotation marks omitted). But-for causation is “the background against which Congress legislate[s],” and it is “the default rul[e Congress] is presumed to have incorporated, absent an indication to the contrary in the statute itself.” *Id.*, at 347 (citing W. Keeton, D. Dobbs, R. Keeton, & D. Owen, *Prosser and Keeton on Law of Torts* 265 (5th ed. 1984)). We have recognized as much when interpreting 42 U. S. C. § 1981’s prohibition against racial discrimination in contracting, *Comcast Corp. v. National Assn. of African American-Owned Media*, 589 U. S. 327 (2020). Title VII’s retaliation provision, *Nassar*, 570 U. S. 338, and the private-sector provision of the ADEA, *Gross v. FBL Financial Services, Inc.*, 557 U. S. 167 (2009).

Given this established backdrop, the question becomes whether the federal-sector provision of the ADEA contains sufficiently clear language to overcome the default rule. The provision states: “All personnel actions affecting employees or applicants for employment who are at least 40 years of age . . . shall be made free from any discrimination based on age.” 29 U. S. C. § 633a(a).

I agree with the Court that discrimination means differential treatment, that “based on” connotes a but-for relation-

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ship, and that “to make” typically means to produce or to become. *Ante*, at 406. But I disagree with the Court’s overall interpretation of how these terms fit together. Specifically, the Court believes that “‘based on age’” modifies only “‘discrimination,’” not “‘personnel actions.’” *Ibid*. From this, the Court concludes that the plain meaning of the text “demands that personnel actions be untainted by any consideration of age.” *Ante*, at 402.

In my view, however, the provision is also susceptible of the Government’s interpretation, *i. e.*, that the entire phrase “discrimination based on age” modifies “personnel actions.” Under this reading, as the Government explains, the provision “prohibits agencies from engaging in ‘discrimination *based on age*’ in the making of personnel actions.” Brief for Respondent 16. Because the only thing being “made” in the statute is a “personnel action,” it is entirely reasonable to conclude that age must be the but-for cause of that personnel action.

At most, the substantive mandate against discrimination in § 633a(a) is ambiguous. And it goes without saying that an ambiguous provision does not contain the clear language necessary to displace the default rule. Accordingly, I would hold that the default rule of but-for causation applies here.

B

The Court attempts to downplay the sweeping nature of its novel “any consideration” rule by discussing the limited remedies available under that rule. Specifically, the Court declares that a plaintiff can obtain compensatory damages, backpay, and reinstatement only if he proves that age was a but-for cause of an adverse personnel action. Otherwise, he can obtain only injunctive or prospective relief. See *ante*, at 413–414.

If the text of the ADEA contained this remedial scheme, it would support the Court’s conclusion regarding causation. But the Court does not cite any remedial statutory provision.

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Nor can it, as one does not exist. The Court also fails to cite any authority suggesting that its remedial scheme existed, at common law or otherwise, in 1974 when Congress added the federal-sector provision to the ADEA. §28(b)(2), 88 Stat. 74–75.

Instead, the Court principally relies on *Texas v. Lesage*, 528 U. S. 18 (1999) (*per curiam*), which applied *Mt. Healthy City Bd. of Ed. v. Doyle*, 429 U. S. 274 (1977). See *Lesage*, 528 U. S., at 20–22. But *Mt. Healthy* and, by extension, *Lesage* do not assist the Court. In *Mt. Healthy*, the Court crafted, for the first time, a remedial scheme for constitutional claims brought under 42 U. S. C. §1983. 429 U. S., at 285–287. Significantly, that decision postdates enactment of the federal-sector provision by three years. And *Mt. Healthy* did not import a remedial scheme from a previously existing statute or common-law rule. Rather, the Court cited other cases in which it had similarly fashioned a novel causation standard for constitutional claims—none of which concerned remedies—as “instructive in formulating the test to be applied.” *Id.*, at 286–287. It is incongruous to suggest that Congress could have intended to incorporate a remedial scheme that appears not to have existed at the time the statute was passed. Moreover, *Mt. Healthy* concerned a constitutional injury, and the Court was tasked with creating a remedy for that injury in the face of §1983’s silence. The Court fails to provide any explanation as to why it is appropriate to rely on judicially fashioned remedies for constitutional injuries in this purely statutory context.

In sum, the Court implausibly concludes that, in the federal-sector provision of the ADEA, Congress created a novel “any consideration” causation standard but remained completely silent as to what remedies were available under that new rule. Just as implausibly, the Court assumes from this congressional silence that Congress intended for judges to craft a remedial scheme in which the available relief would vary depending on the inflicted injury, using an as-yet unknown scheme.

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I would not follow such an unusual course. We have stated in the past that we must “read [the ADEA] the way Congress wrote it.” *Meacham v. Knolls Atomic Power Laboratory*, 554 U. S. 84, 102 (2008). The federal-sector provision contains no clear language displacing the default rule, and Congress has demonstrated that it knows how to do so when it wishes. See 42 U. S. C. § 2000e–2(m) (providing that an employer is liable if an employee establishes that a protected characteristic was a motivating factor in an employment action); § 2000e–5(g)(2)(B) (limiting the remedies available to plaintiffs who establish motivating factor liability).¹ Rather than supplementing a novel rule with a judicially crafted remedy, I would infer from the textual silence that Congress wrote the ADEA to conform to the default rule of but-for causation.

II

Perhaps the most striking aspect of the Court’s analysis is its failure to grapple with the sheer unworkability of its rule. The Court contends that a plaintiff may successfully bring a cause of action if age “taint[s]” the making of a personnel action, even if the agency would have reached the same outcome absent any age-based discrimination. *Ante*, at 406–407. Because § 633a(a)’s language also appears in the federal-sector provision of Title VII, 42 U. S. C. § 2000e–16(a), the Court’s rule presumably applies to claims alleging discrimination based on sex, race, religion, color, and national origin as well.

The Court’s rule might have some purchase if, as Babb contends, the Federal Government purposely set up a purely merit-based system for its personnel actions. But as anyone with knowledge of the Federal Government’s hiring practices knows, this is hardly the case. Federal hiring is rid-

¹ Courts have followed similar reasoning when determining the standard of causation under the Americans with Disabilities Act. See, e. g., *Natofsky v. New York*, 921 F. 3d 337, 346–348 (CA2 2019); *Gentry v. East West Partners Club Mgmt. Co.*, 816 F. 3d 228, 233–236 (CA4 2016); *Serwatka v. Rockwell Automation, Inc.*, 591 F. 3d 957, 961–964 (CA7 2010).

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dled with exceptions and affirmative action programs, which by their very nature are not singularly focused on merit.

A few examples suffice to demonstrate this point. The Veterans Preference Act of 1944 entitles certain veterans, their spouses, and their parents to preferences in hiring and in retention during reductions in force. 5 U. S. C. §§2108(3), 3502, 3309; 5 CFR §211.102 (2019). Affirmative action exists for people with disabilities, both in competitive and noncompetitive employment. See 29 U. S. C. §791; 5 CFR §213.3102(u); 29 CFR §1614.203(d) (2019). The Federal Equal Opportunity Recruitment Program requires agencies to implement recruitment plans for women and certain underrepresented minorities. 5 U. S. C. §7201; 5 CFR §720.205. And Exec. Order No. 13171, §2(a), 3 CFR 299 (2000), requires federal agencies to “provide a plan for recruiting Hispanics that creates a fully diverse workforce for the agency in the 21st century.” Whatever the wisdom of these policies, they are not strictly merit-based hiring.

The Court’s new rule is irreconcilable with these various programs because affirmative action initiatives always taint personnel actions with consideration of a protected characteristic. Consider Exec. Order No. 13583, §1, 3 CFR 267 (2011), which directs agencies to “develop and implement a more comprehensive, integrated, and strategic focus on diversity and inclusion as a key component of their human resources strategies.” To provide just one example of how agencies are implementing this requirement, Customs and Border Protection’s plan commits the agency to “[i]ncreasing the] percentage of applicants from underrepresented groups for internships and fellowships,” “[c]reating] a targeted outreach campaign to underrepresented groups for career development programs at all levels,” “[e]stablish[ing] and maintain[ing] strategic partnerships with diverse professional and affinity organizations,” “[a]nalyz[ing] demographic data for new hires and employee separations to identify and assess potential barriers to workforce diversity,” and “[d]evel-

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op[ing] a diversity recruitment performance dashboard which provides relevant statistics and related performance metrics to evaluate progress towards achievement of recruitment goals.” U. S. Customs and Border Protection, Privacy and Diversity Office, Diversity and Inclusion: Strategic Plan 2016–2020, pp. 11–15 (2015). Programs such as these intentionally inject race, sex, and national origin into agencies’ hiring and promotion decisions at the express direction of the President or Congress.

A but-for (or even a motivating-factor²) standard of causation could coexist relatively easily with these affirmative action programs, as it would be difficult for a plaintiff to plausibly plead facts sufficient to establish the requisite causation. The Court’s rule, by contrast, raises the possibility that agencies will be faced with a flood of investigations by the EEOC or litigation from dissatisfied federal employees. So long as those employees can show that their employer’s decision to hire a particular job applicant was “tainted” because that applicant benefited in some way from an affirmative action program, their complaints to enjoin these programs can survive at least the pleadings stage.³

²Many Courts of Appeals apply the motivating-factor standard to federal-sector Title VII claims. See, e. g., *Ponce v. Billington*, 679 F. 3d 840, 844 (CA DC 2012); *Makky v. Chertoff*, 541 F. 3d 205, 213–214 (CA3 2008). Even assuming this is a correct interpretation, see 42 U. S. C. § 2000e–16(d) (incorporating by reference the private-sector motivating-factor provisions), the Court’s “any consideration” rule imposes an even lower bar. No party submitted briefing on the criteria that courts or the Equal Employment Opportunity Commission (EEOC) use to establish a motivating factor, but the cases from which this standard was derived indicate that it mirrored the tort concept of substantial cause. See, e. g., *Price Waterhouse v. Hopkins*, 490 U. S. 228, 249 (1989) (plurality opinion); *Mt. Healthy City Bd. of Ed. v. Doyle*, 429 U. S. 274, 287 (1977).

³On this score, it is worth mentioning that even the EEOC has not adopted the Court’s low bar but instead employs a motivating-factor standard. See, e. g., *Brenton W. v. Chao*, 2017 WL 2953878, *9 (June 29, 2017); *Arroyo v. Shinseki*, 2012 WL 2952078, *4 (July 11, 2012).

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* * *

Today's decision is inconsistent with the default rule underlying our interpretation of antidiscrimination statutes and our precedents, which have consistently applied that rule. Perhaps just as important, the Court's holding unnecessarily risks imposing hardship on those tasked with managing thousands of employees within our numerous federal agencies. I respectfully dissent.

Per Curiam

REPUBLICAN NATIONAL COMMITTEE ET AL. v.
DEMOCRATIC NATIONAL COMMITTEE ET AL.

ON APPLICATION FOR STAY

No. 19A1016. Decided April 6, 2020

Wisconsin decided to proceed with primary elections scheduled for April 7, 2020, during the COVID-19 pandemic. In federal litigation challenging voting procedures, a Federal District Court extended the deadline for municipal clerks to receive absentee ballots from April 7, 2020, to April 13, 2020. Then, five days before the scheduled election, the District Court unilaterally ordered that absentee ballots mailed and postmarked after election day be counted so long as they are received by April 13. Plaintiffs, in their preliminary injunction motions, did not ask the District Court for this relief.

Held: The District Court's order granting a preliminary injunction is stayed to the extent it requires the State to count absentee ballots postmarked after April 7, 2020. The District Court, by enjoining enforcement of a state statutory requirement that ballots for primary election be mailed by voters and postmarked by election day, afforded relief not sought in preliminary injunction motions, and violated the principle that lower federal courts should ordinarily not alter election rules on the eve of an election. See, *e. g.*, *Purcell v. Gonzalez*, 549 U. S. 1 (*per curiam*). Preliminary injunction stayed in part.

PER CURIAM.

The application for stay presented to JUSTICE KAVANAUGH and by him referred to the Court is granted. The District Court's order granting a preliminary injunction is stayed to the extent it requires the State to count absentee ballots postmarked after April 7, 2020.

Wisconsin has decided to proceed with the elections scheduled for Tuesday, April 7. The wisdom of that decision is not the question before the Court. The question before the Court is a narrow, technical question about the absentee ballot process. In this Court, all agree that the deadline for the municipal clerks to receive absentee ballots has been extended from Tuesday, April 7, to Monday, April 13. That extension, which is not challenged in this Court, has afforded

Wisconsin voters several extra days in which to mail their absentee ballots. The sole question before the Court is whether absentee ballots now must be mailed and postmarked by election day, Tuesday, April 7, as state law would necessarily require, or instead may be mailed and postmarked after election day, so long as they are received by Monday, April 13. Importantly, in their preliminary injunction motions, the plaintiffs did not ask that the District Court allow ballots mailed and postmarked after election day, April 7, to be counted. That is a critical point in the case. Nonetheless, five days before the scheduled election, the District Court unilaterally ordered that absentee ballots mailed and postmarked after election day, April 7, still be counted so long as they are received by April 13. Extending the date by which ballots may be cast by voters—not just received by the municipal clerks but cast by voters—for an additional six days after the scheduled election day fundamentally alters the nature of the election. And again, the plaintiffs themselves did not even ask for that relief in their preliminary injunction motions. Our point is not that the argument is necessarily forfeited but that the plaintiffs themselves did not see the need to ask for such relief. By changing the election rules so close to the election date and by affording relief that the plaintiffs themselves did not ask for in their preliminary injunction motions, the District Court contravened this Court’s precedents and erred by ordering such relief. This Court has repeatedly emphasized that lower federal courts should ordinarily not alter the election rules on the eve of an election. See *Purcell v. Gonzalez*, 549 U. S. 1 (2006) (*per curiam*); *Frank v. Walker*, 574 U. S. 929 (2014); *Veasey v. Perry*, 574 U. S. 951 (2014).

The unusual nature of the District Court’s order allowing ballots to be mailed and postmarked after election day is perhaps best demonstrated by the fact that the District Court had to issue a subsequent order enjoining the public release of any election results for six days after election day.

Per Curiam

In doing so, the District Court in essence enjoined non-parties to this lawsuit. It is highly questionable, moreover, that this attempt to suppress disclosure of the election results for six days after election day would work. And if any information were released during that time, that would gravely affect the integrity of the election process. The District Court's order suppressing disclosure of election results showcases the unusual nature of the District Court's order allowing absentee ballots mailed and postmarked after election day to be counted. And all of that further underscores the wisdom of the *Purcell* principle, which seeks to avoid this kind of judicially created confusion.

The dissent is quite wrong on several points. First, the dissent entirely disregards the critical point that the plaintiffs themselves did not ask for this additional relief in their preliminary injunction motions. Second, the dissent contends that this Court should not intervene at this late date. The Court would prefer not to do so, but when a lower court intervenes and alters the election rules so close to the election date, our precedents indicate that this Court, as appropriate, should correct that error. Third, the dissent refers to voters who have not yet received their absentee ballots. But even in an ordinary election, voters who request an absentee ballot at the deadline for requesting ballots (which was this past Friday in this case) will usually receive their ballots on the day before or day of the election, which in this case would be today or tomorrow. The plaintiffs put forward no probative evidence in the District Court that these voters here would be in a substantially different position from late-requesting voters in other Wisconsin elections with respect to the timing of their receipt of absentee ballots. In that regard, it bears mention that absentee voting has been underway for many weeks, and 1.2 million Wisconsin voters have requested and have been sent their absentee ballots, which is about five times the number of absentee ballots requested in the 2016 spring election. Fourth, the dissent's

rhetoric is entirely misplaced and completely overlooks the fact that the deadline for receiving ballots was already extended to accommodate Wisconsin voters, from April 7 to April 13. Again, that extension has the effect of extending the date for a voter to mail the ballot from, in effect, Saturday, April 4, to Tuesday, April 7. That extension was designed to ensure that the voters of Wisconsin can cast their ballots and have their votes count. That is the relief that the plaintiffs actually requested in their preliminary injunction motions. The District Court on its own ordered yet an additional extension, which would allow voters to mail their ballots after election day, which is extraordinary relief and would fundamentally alter the nature of the election by allowing voting for six additional days after the election.

Therefore, subject to any further alterations that the State may make to state law, in order to be counted in this election a voter's absentee ballot must be either (1) postmarked by election day, April 7, 2020, and received by April 13, 2020, at 4 p.m., or (2) hand delivered as provided under state law by April 7, 2020, at 8 p.m.

The Court's decision on the narrow question before the Court should not be viewed as expressing an opinion on the broader question whether to hold the election, or whether other reforms or modifications in election procedures in light of COVID-19 are appropriate. That point cannot be stressed enough.

The stay is granted pending final disposition of the appeal by the United States Court of Appeals for the Seventh Circuit and the timely filing and disposition of a petition for a writ of certiorari. Should the petition for a writ of certiorari be denied, this stay shall terminate automatically. In the event the petition for a writ of certiorari is granted, the stay shall terminate upon the sending down of the judgment of this Court.

It is so ordered.

GINSBURG, J., dissenting

JUSTICE GINSBURG, with whom JUSTICE BREYER, JUSTICE SOTOMAYOR, and JUSTICE KAGAN join, dissenting.

The District Court, acting in view of the dramatically evolving COVID–19 pandemic, entered a preliminary injunction to safeguard the availability of absentee voting in Wisconsin’s spring election. This Court now intervenes at the eleventh hour to prevent voters who have timely requested absentee ballots from casting their votes. I would not disturb the District Court’s disposition, which the Seventh Circuit allowed to stand.

I

A

Wisconsin’s spring election is scheduled for tomorrow, Tuesday, April 7, 2020. At issue are the presidential primaries, a seat on the Wisconsin Supreme Court, three seats on the Wisconsin Court of Appeals, over 100 other judgeships, over 500 school board seats, and several thousand other positions. *Democratic National Committee v. Bostelmann*, 451 F. Supp. 3d 952, 959–960 (WD Wis. 2020).

In the weeks leading up to the election, the COVID–19 pandemic has become a “public health crisis.” *Id.*, at 958. As of April 2, Wisconsin had 1,550 confirmed cases of COVID–19 and 24 deaths attributable to the disease, “with evidence of increasing community spread.” *Id.*, at 960. On March 24, the Governor ordered Wisconsinites to stay at home until April 24 to slow the spread of the disease. *Ibid.*

Because gathering at the polling place now poses dire health risks, an unprecedented number of Wisconsin voters—at the encouragement of public officials—have turned to voting absentee. *Id.*, at 960–961. About one million more voters have requested absentee ballots in this election than in 2016. *Ibid.* Accommodating the

surge of absentee-ballot requests has heavily burdened election officials, resulting in a severe backlog of ballots requested but not promptly mailed to voters. *Id.*, at 961–962.

B

Several weeks ago, plaintiffs—comprising individual Wisconsin voters, community organizations, and the state and national Democratic parties—filed three lawsuits against members of the Wisconsin Elections Commission in the United States District Court for the Western District of Wisconsin.¹ The District Court consolidated the suits on March 28. The plaintiffs sought several forms of relief, all aimed at easing the effects of the COVID–19 pandemic on the upcoming election.

After holding an evidentiary hearing, the District Court issued a preliminary injunction on April 2. As relevant here, the court concluded that the existing deadlines for absentee voting would unconstitutionally burden Wisconsin citizens’ right to vote. See *Burdick v. Takushi*, 504 U. S. 428, 434 (1992); *Anderson v. Celebrezze*, 460 U. S. 780, 789 (1983). To alleviate that burden, the court entered a twofold remedy. First, the District Court extended the deadline for voters to request absentee ballots from April 2 to April 3. Second, the District Court extended the deadline for election officials to receive completed absentee ballots. Previously, Wisconsin law required that absentee ballots be received by 8 p.m. on election day, April 7; under the preliminary injunction, the ballots would be accepted until 4 p.m. on April 13, regardless of the postmark date. The District Court also enjoined members of the Elections Commission and election inspectors from releasing any report of polling results before the new absentee-voting deadline, April 13.

¹The state and national Republican parties intervened as defendants. The District Court denied intervention by the state legislature, which the Seventh Circuit later allowed.